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Case Number: 25PSCV02478 Hearing Date: August 4, 2026 Dept: 6

CASE NAME: Nancy Jimenez v. General Motors, LLC

Plaintiff Nancy Jimenez's Motion for \$25,174.80 in Attorneys' Fees and \$1,360.04 in Costs Pursuant to California Civil Code § 1794(D)

TENTATIVE RULING

The Court GRANTS in part Plaintiff Nancy Jimenez's Motion for Attorneys' Fees and Costs Pursuant to California Civil Code § 1794(D). The Court awards Plaintiff \$14,962.50 in attorney fees and \$1,342.98 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On July 3, 2025, plaintiff Nancy Jimenez (Plaintiff) filed this action against defendant General Motors, LLC (Defendant) and Does 1 through 10, alleging causes of action for breach of express warranty obligations, breach of implied warranty obligations, failure to repair in a good and workmanlike manner, and failure to repair within thirty days.

On April 14, 2026, the Court dismissed this action without prejudice and retained jurisdiction under Code of Civil Procedure section 664.6.

On June 16, 2026, Plaintiff moved for attorney fees. On July 27, 2026, Defendant opposed the Motion. On July 29, 2026, Plaintiff replied to Defendant's Opposition.

LEGAL STANDARD

"The following items are allowable as costs under Section 1032:... (10) Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." (Code Civ. Proc., § 1033.5, subd. (a)(10).) "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, §

1794, subd. (d).)

The party seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.) To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]" (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

"The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.)

A verified fee bill is prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

PRELIMINARY ISSUES

Defendant untimely filed its Opposition on July 27, 2026. The deadline for Defendant's Opposition was July 22, 2026. (Code Civ. Proc., § 1005, subd. (b).) The Court exercises its discretion to still consider Defendant's Opposition, but nevertheless admonishes Defendant to comply with the Code of Civil Procedure going forward. (See Cal. Rules of Court, rule 3.1300, subd. (d); Juarez v. Wash Depot Holdings, Inc. (2018) 24 Cal.App.5th 1197, 1202.)

EVIDENTIARY OBJECTIONS

The Court overrules Plaintiff's evidentiary objections.

DISCUSSION

Summary of Arguments

Plaintiff moves as the prevailing party under Civil Code section 1794, subdivision (d), and the parties' settlement for \$25,174.80 in attorney fees and \$1,360.04 in costs, comprised of a \$20,979 lodestar for 50.6 hours plus a 1.2 multiplier. Plaintiff contends her counsel's requested rates, i.e., Joseph Kaufman \$595–\$615, Scott A. Sanchez \$375–\$395, and paralegal Melissa Lopez \$175-195, are at or below prevailing market rates and are supported by declarations and prior fee approvals, and that the hours billed were reasonable, efficiently staffed, non-duplicative, and driven by Defendant's refusal to repurchase and its litigation choices. Plaintiff argues the award need not be proportional to her recovery. Plaintiff further seeks a 1.2 multiplier based on the \$100,000.00 settlement outcome, the contingent risk of nonpayment, and the delay in payment, and requests fees for bringing the Motion, including 4.5 hours of anticipated time.

In opposition, Defendant concedes Plaintiff is the prevailing party but contends the fees are unreasonable for a routine lemon law case that settled at mediation about five months after filing. Defendant argues the claimed hourly rates are excessive, supported only by hearsay and inflated "billed rates," and should be reduced to a \$250 blended rate. Defendant seeks to reduce or strike various entries as duplicative, clerical, or improper, including:

- (1) \$992.50 for discovery barred by Code of Civil Procedure section 871.26;
- (2) \$375.00 for purportedly improper deposition subpoenas;
- (3) \$1,125.00 for duplicative review of repair orders and legal research of NHTSA's ODI database and \$119.00 for attorney Kaufman apparently doing the same legal research;
- (4) \$238.00 for additional duplicative work reviewing Defendant's Answer and a proposed protective order;
- (5) \$225.00 for attorney Sanchez's review of certain documents;
- (6) \$357.00 for duplicative review of document production and repair orders;
- (7) \$487.50 in connection the vehicle surrender as being duplicative;
- (8) \$120.00 for work performed by attorney Sanchez better suited for paralegals; and
- (9) \$887.00 tied to a motion to enforce settlement for which fees were already denied.

Defendant also seeks a reduction of the fee-motion time and \$1,777.50 in anticipated, unperformed fees. Defendant opposes any multiplier and urges a negative one, arguing the case involved no complexity or exceptional representation and that Song-Beverly's mandatory fee-shifting eliminates the claimed contingency and delay risks.

In reply, Plaintiff argues that Defendant's opposition to her motion for \$25,174.80 in attorneys' fees and \$1,360.04 in costs under Civil Code § 1794, subdivision (d), offers only conclusory, general objections that are legally insufficient and fail to carry Defendant's burden to challenge specific time entries. Plaintiff contends that her counsel's hourly rates are reasonable and consistent with prevailing market rates, supported by declarations citing numerous California cases approving those rates and evidence of comparable practitioners billing at equal or higher rates. Plaintiff maintains that the hours billed were reasonably and necessarily expended, and that a modest lodestar multiplier is warranted given the result achieved and the contingency risk. Plaintiff further asserts that Defendant failed to engage in good faith efforts to resolve fees and costs, requiring Plaintiff to file the motion, and that Defendant does not challenge and appears to concede the requested costs. Plaintiff also notes that Defendant's opposition was filed five days late and requests that the Court disregard it and excuse Plaintiff's one-day-late reply.

Analysis

Prevailing Parties

There is no dispute that Plaintiff is the prevailing party and therefore entitled to recover attorney fees and costs. The parties' settlement agreement provides that such fees and costs may be determined by way of a noticed motion. (Sanchez Decl., Ex. 1, ¶ 1, subd. (d); Civ. Code, ¶ 1794, subd. (d).)[1] Defendant's Opposition also expressly acknowledges Plaintiff is the

prevailing party. (Opp., 1:6.)

Hourly Rates

The Court finds Plaintiff's counsel's hourly rates somewhat high for the East Judicial District. "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.) The Court will reduce attorney Kaufman's hourly rate to \$550.00, attorney Sanchez's hourly rate to \$375.00, and paralegal Melissa Lopez's hourly rate to \$175.00. (See Kaufman Decl., ¶ 14.)

This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience. An award at the rates requested comes with the expectation that the attorneys work in an efficient manner that reflects the elevated premium paid for their services. The Court considers this factor in addressing the reasonableness of the hours expended.

Hours Expended

Plaintiff also provided a verified fee bill, which is prima facie evidence that Plaintiff's fees and costs listed therein were necessarily incurred. (Kaufman Decl., ¶ 2, Ex. A; Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Defendant therefore bears the burden of challenging the specific portions of the fee bill it contends are improper or unreasonable. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564 [burden is on challenging party to point to specific items challenged with sufficient argument and citations to the evidence, and failure to raise specific challenges in the trial court forfeits the claim on appeal].) As noted above, Defendant seeks to reduce or strike various entries as duplicative, clerical, or improper.

The Court finds Plaintiff's claimed hours somewhat excessive. This case been pending for approximately one year and settled within five months. (See Sanchez Decl., ¶¶ 2, 4, Ex. 1.) It also contains little motion practice other than for this Motion and the prior motion to enforce settlement. (Rodriguez Decl., ¶ 22, Ex. A.) The Court also agrees with Defendant that some of the charges incurred were duplicative and unnecessary, such as the discovery propounded before mediation and the motion to enforce settlement which the Court denied, including the request for attorney fees. (See Kaufman Decl., Ex. A, pp. 12-14 of pdf; Code Civ. Proc., § 871.26, subds. (b)-(d).)

Moreover, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter "should not have required anything more than [a] slight factual modification to [an] existing boilerplate." (See Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 250.)

The Court does not find a multiplier warranted. (See Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1058 [judge has discretion to award multiplier].)

Considering these facts, the Court ultimately finds the amount billed somewhat excessive under the circumstances. In light of the foregoing discussion and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney fees in this case, using a lodestar methodology, is as follows:

1. 7.0 hours for attorney Kaufman, multiplied by the hourly rate of \$550.00, for a subtotal of \$3,850.00;
2. 28.0 hours for attorney Sanchez, multiplied by the hourly rate of \$375.00, for a subtotal of \$10,500.00; and

3. 3.5 hours for paralegal Lopez, multiplied by the hourly rate of \$175.00, for a subtotal of \$612.50.

4. Total Attorney Fees = \$14,962.50

The Court finds this to be the reasonable amount billed for all tasks in this matter, including this Motion.

Costs and Expenses

The Court finds Plaintiff's claimed costs to be proper except as to the \$13.50 in photocopies and \$3.56 postage. (Kaufman Decl., Ex. 2, ¶¶ 1, 15). Photocopying and postage is generally not a recoverable cost in litigation. (Code Civ. Proc., § 1033.5, subd. (b)(3).) The Court will therefore award Plaintiff \$1,342.98 in costs.

Based on the foregoing, the Court GRANTS the Motion and awards Plaintiff \$14,962.50 in attorney fees and \$1,342.98 in costs.

CONCLUSION

The Court GRANTS in part Plaintiff Nancy Jimenez's Motion for Attorneys' Fees and Costs Pursuant to California Civil Code § 1794(D). The Court awards Plaintiff \$14,962.50 in attorney fees and \$1,342.98 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The Court notes that the copy of the settlement agreement provided is not countersigned by Defendant. (Sanchez Decl., Ex. 1.) But, given Defendant's concession in its Opposition that Plaintiff is the prevailing party, this is not fatal to Plaintiff's Motion. (Opp., 1:6.) The Court nevertheless admonishes Plaintiff's counsel to provide fully executed copies of such settlement agreements going forward.